

		When a defendant bears the burden of proving a defense at trial, it is a “new matter” or “affirmative defense” that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]” (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 732.) “There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (<i>Id.</i> at 733.) Defendant alleges various defenses without stating additional facts. Defendant asserts that any vagueness in its affirmative defenses is due to Plaintiff’s failure to attach the operative contract to its complaint, and Defendant was not a signatory and is therefore unaware of the contract’s specific terms. At the pleading stage, Defendant has adequately asserted the disputed affirmative defenses which respond to the allegations in Plaintiff’s complaint sufficient put Plaintiff on notice to conduct further discovery into their factual bases. Therefore, the demurrer is overruled.
11.	AMER VS. SAFETY PROTECTION SECURITY, LLC. 2025-01530924	1. DEMURRER TO COMPLAINT 2. MOTION TO STRIKE COMPLAINT Defendant The Islamic Society of Orange County’s Demurrer and Motion to Strike Portions of the Complaint are CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32. The parties/counsel have not engaged in sufficient attempts to meet and confer. If, upon review of the parties’ declarations, “a court learns no meet and confer has taken place, or <i>concludes further conferences between counsel would likely be productive</i>, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the

		need for a demurrer, and to continue the hearing date to facilitate that effort.” (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 356, fn. 3 [emphasis added].) Here, the parties telephonically met and conferred on 2/27/26. (Wang Decl. iso Defendant’s Demurrer/Motion to Strike, ¶ 6; Cojocnean Decl. iso Plaintiff’s Opposition, ¶ 8.) After the call, Defendant sent a confirming email stating, “This email confirms that Plaintiff will amend the Complaint.” (Wang Decl., Ex. C, p. 3.) On 3/17/26, when Defendant followed up with a draft stipulation to amend, Plaintiff responded, that he was “willing to amend the complaint in exchange for ISOC’s waiver of their right to file a motion to strike or demurrer. To facilitate that process, we can draft a proposed amended complaint” and that if ISOC was unwilling “to proceed in that manner,” it should file its responsive pleading. (Wang Decl., ¶ 7, Ex. C; Cojocnean Decl. ¶ 9, Ex. E.) Defendant refused and noted “there was no discussion of any waiver during the 2/27/26 call.” (Wang Decl., ¶ 8, Ex. C; see Cojocnean Decl. ¶ 9, Ex. E.) Plaintiff’s agreement to amend concedes the complaint is deficient, at least in part. Yet Plaintiff refused to amend unless Defendant waived its right to file a demurrer or motion to strike the amended pleading. Thus, the court finds Plaintiff’s conduct lacked good faith and further meet and confer efforts would be productive. The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. Counsel shall discuss whether a first amended complaint would resolve some or all of the issues raised in the demurrer and motion to strike. If so, the parties should submit a stipulation to file an amended complaint. Plaintiff may <u>not</u> condition amendment on Defendant’s waiver of its right to file a demurrer or motion to strike the amended complaint. No later than five court days before the continued hearing date, defendant’s counsel is ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.
12.	BAUMAN VS. CITY OF LAGUNA NIGUEL 2024-01401532	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendant City of Laguna Niguel’s Motion for Summary Judgment/Adjudication is DENIED.